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February 25, 2025

COMMITTEE SUBSTITUTE  
FOR

SENATE BILL NO. 694

By: Alvord

An Act relating to annexation and detachment; amending 11 O.S. 2021, Section 21-110, which relates to detachment of municipal territory; providing certain exceptions; allowing for certain written consent; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 11 O.S. 2021, Section 21-110, is amended to read as follows:

Section 21-110. A. Territory may be detached from the corporate limits of a municipality by the governing body when:

1. An ordinance of the governing body so directs; or

2. A petition requesting detachment, signed by at least three-fourths (3/4) of the registered voters and by the owners of at least three-fourths (3/4), in value, of the property to be detached, is filed with the governing body.

Only land which is within the limits of the municipality and upon its border and not laid out in lots and blocks, or land which had been annexed to a municipality, may be detached by petition.

1 B. Petitioners for detachment of municipal territory shall  
2 comply with the following procedures:

3 1. A true and complete unsigned copy of the petition requesting  
4 detachment shall be filed with the clerk of the municipality before  
5 it is circulated and signed by at least three-fourths (3/4) of the  
6 registered voters and by the owners of at least three-fourths (3/4),  
7 in value, of the property to be detached, as required by subsection  
8 A of this section;

9 2. Signed copies of the petition requesting detachment shall be  
10 filed with the clerk of the municipality within ninety (90) days  
11 after the initial filing of the unsigned copy with the clerk; and

12 3. Notice of the filing of the signed petition requesting  
13 detachment with the clerk of the municipality shall be given in the  
14 same manner provided for petitions requesting annexation.

15 Failure to comply with the notice requirement or the other  
16 procedures set forth in this subsection shall render the petition  
17 for detachment insufficient and no action thereon shall be required  
18 by the clerk or governing body of the municipality.

19 C. When signed copies of the petition requesting detachment are  
20 timely filed with the clerk of the municipality, the clerk shall  
21 determine the sufficiency of the signatures appearing on the  
22 petition. The clerk shall then publish, in at least one newspaper  
23 of general circulation in the municipality, a notice of the filing  
24 and the apparent sufficiency or insufficiency of the petition.

1 Within ten (10) days following the publication, the governing body  
2 of the municipality shall hold a public hearing on the petition  
3 requesting detachment and take such action thereon as the governing  
4 body deems appropriate, which may include approval, denial, or  
5 deferral.

6 D. Appeal to the district court concerning any action by the  
7 clerk or governing body of the municipality on a petition requesting  
8 detachment shall be in the same manner provided for petitions  
9 requesting annexation.

10 E. Territory to be detached under subsection A of this section  
11 shall not be detached if:

12 1. The territory includes an intervening strip less than four  
13 (4) rods wide;

14 2. The territory is separated from the corporate limits of a  
15 municipality only by a railway right-of-way;

16 3. The territory is a highway right-of-way adjacent to or  
17 contiguous with a municipality; or

18 4. The territory includes properties that will be split in two,  
19 resulting in part of the property falling inside the corporate  
20 limits of a municipality and part of it falling outside the  
21 corporate limits of the municipality.

22 F. Notwithstanding the provisions of subsection E of this  
23 section, the state, county, or any other political subdivision or  
24 governmental entity which will assume responsibility over the

1 proposed detached territory may give written consent to the  
2 detachment.

3 SECTION 2. This act shall become effective November 1, 2025.

4 COMMITTEE REPORT BY: COMMITTEE ON LOCAL AND COUNTY GOVERNMENT  
5 February 25, 2025 - DO PASS AS AMENDED BY CS  
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